AGREEMENT

Independent Contractor Agreement

PNCL, LLC A WYOMING LIMITED LIABILITY COMPANY

EFFECTIVE DATE

CONTRACTOR

PNCL, LLC

Independent Contractor Agreement

THIS INDEPENDENT CONTRACTOR AGREEMENT (**"Agreement"**) is made and entered into as of this ______ day of ___________, 20_____ (**"Effective Date"**) by and between PNCL, LLC, a Wyoming limited liability company (**"Company"**), and ____ (**"Contractor"**) (Company and Contractor from time to time each referred to herein as a **"Party"** or collectively as the **"Parties"**).

RECITALS

WHEREAS, the Company has, either directly or through one or more Affiliates, relationships with various insurance carriers offering insurance products (**"Company Carriers"**);

WHEREAS, the Company intends to authorize Contractor to sell life insurance and related products for certain of the Company Carriers on the terms and conditions set forth herein; and

WHEREAS, the Parties are entering into this Agreement to establish the terms and conditions of their contractual relationship.

NOW, THEREFORE, in consideration of the mutual covenants, agreements and conditions set forth herein, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

AGREEMENT

1. Contractor's Services.

a. **Performance of Contractor's Services.** Contractor acknowledges that Contractor is an independent contractor and not an employee of Company and shall not receive benefits the Company may offer to its employees. Subject to the terms and conditions herein, Contractor shall determine the method, manner and means of producing insurance product and related sales for the Company Carriers (the **"Contractor Services"**). Contractor may, at Contractor's own expense, employ such employees and engage such independent contractors as Contractor deems necessary to perform the Contractor Services. If Contractor or its Affiliates engages other entities or individuals in connection with the Contractor Services hereunder (**"Contractor Parties"**), Contractor acknowledges and agrees that the Contractor Parties are subject to the same obligations of Contractor hereunder and that Contractor shall be independently responsible with respect thereto as if such Contractor Parties were parties hereto. The Parties acknowledge and agree that the Company shall not control, direct, or supervise Contractor or Contractor Parties in the performance of the Contractor Services. Contractor shall be exclusively responsible for the payment of all state and federal taxes, including sales taxes, unemployment or workers compensation insurance, retirement, pension or other social security or similar benefits, for any Contractor Parties employed or engaged by Contractor in connection with this Agreement. Contractor expressly acknowledges and agrees that neither Contractor nor Contractor Parties shall be treated as employees of Company or any of its Affiliates for purposes of the Federal Insurance Contributions Act (FICA), the Social Security Act, the Federal Unemployment Tax Act (FUTA), tax withholding, or any state or local law providing for such benefits, or unemployment benefits, disability benefits, workers compensation, or other benefits. Contractor shall further assume exclusive responsibility for all self-employment and other taxes incurred by Contractor with respect to the performance of Services under this Agreement. Contractor shall have no authority to bind the Company or any Affiliate of the Company with any third party. As an independent contractor, Contractor will also pay all expenses in connection with Contractor's business and hereby warrants that Contractor shall not incur any indebtedness on behalf of the Company in connection with expenses resulting from Contractor's business as a self-employed independent contractor.

b. **Hours and Location.** Contractor shall work those hours at such locations as deemed necessary by Contractor to fulfill the Services. Unless specifically requested by the Company in the case of a meeting, Contractor is not required to perform the Contractor Services during a fixed hourly or daily time frame.

c. **Materials, Tools, and Equipment.** Contractor shall furnish all materials, supplies, equipment, and tools necessary or convenient to perform the Contractor Services, including, but not limited to, vehicles, computers, office space, and phones.

2. Company's Services.

a. **Company Carriers.** The Company agrees to use commercially reasonable efforts, subject in each case to Company Carrier approval, to contract, or cause one or more of the Company's Affiliates to contract the Contractor and Contractor's Affiliates to produce life insurance and related product sales for one or more of the Company Carriers, on and subject to such Company Carriers' contracting and other requirements, the terms and conditions contained herein, and during the term of this Agreement. To the extent Contractor or any of Contractor's Affiliates is already contracted with any Company Carriers through the Company or any of its Affiliates as of the Effective Date, those contracts shall be deemed to have been made subject to the terms and conditions of this Agreement.

b. **Resources and Training.** The Company may provide or otherwise make available resources and training from time to time related to the Contractor Services. Neither Contractor nor Contractor's Affiliates shall be required to utilize any such training; provided, that access to certain products may be conditioned on having successfully completed certain training and maintaining such training for such product.

3. Compensation and Chargebacks.

a. **Commissions.** Subject to subsections 3.b. and 3.c. hereof, Contractor shall be entitled to receive from the Company Carriers, on newly written insurance and related products sold and placed by Contractor for and with the Company Carriers under this Agreement, the commissions and other compensation at the levels in effect at the time of such sale and placement, plus any renewals payable pursuant to the applicable Company Carrier agreements, as may be amended from time, in each case based on the Company's policies (**"Commissions"**). The Commission payments will be made directly by the Company Carriers to the Contractor. The applicable Company Carriers will issue Federal Form 1099 Information Returns to Contractor for each calendar year, reporting to Contractor and appropriate government agencies the gross amount paid to Contractor. The Company shall provide Contractor's initial Commission levels or grid to Contractor upon execution of this Agreement, in a separate document "Attachment A."

b. **Commission Levels; Contractor Downline Hierarchy.** During the term of this Agreement, Company shall not modify any Commission or other compensation level of Contractor without Contractor's prior written consent. In the event Contractor has a downline hierarchy of one or more insurance agents for whom the Contractor receives Commission or other compensation from one or more Company Carriers or the Company or any of its Affiliates in connection with the sales of such insurance agents (**"Downline Hierarchy"**), the Company shall not modify the composition or such Downline Hierarchy, the Commission or other compensation levels of insurance agents within such Downline Hierarchy, or the Commission or other compensation levels of Contractor with respect to the sales of insurance agents within such Downline Hierarchy, without Contractor's prior written consent.

c. **Chargebacks.** Contractor is responsible for any amounts distributed by an applicable Company Carrier in Commission that are unearned by Contractor when distributed (**"Unearned Commissions"**). Any Unearned Commissions are distributed with the expectation that they will be fully earned, based on the applicable Company Carrier guidelines. Any Unearned Commissions shall upon distribution to the Contractor be considered a loan from the applicable Company Carrier and the Company to the Contractor, until such Commissions become earned. If at any time the Company or any of its Affiliates is charged or otherwise pays or becomes in any way responsible to any third party, including without limitation a Company Carrier, for any Unearned Commissions for which the Contractor is responsible pursuant to this Agreement (**"Company Paid Commission"**), the Company or any of its Affiliates may immediately (i) with or seven (7) calendar days' notice to Contractor, offset such amounts against any compensation or other amounts due or payable to the Contractor for any reason, (ii) with seven (7) calendar days' notice to Contractor, instruct the applicable Company Carrier to offset such amounts against any compensation or other amounts due or payable to the Contractor from such Company Carrier for any reason, and to pay any and all such offset amounts to the Company, and (iii) provide notice of such to the Contractor and immediately seek repayment from the Contractor. The Contractor shall, upon receipt of notice, have seven (7) calendar days to repay to the Company. The Contractor shall, immediately upon receipt of notice, repay to the Company all Company Paid Commissions. In the event the Company, any of its Affiliates, or anyone on their behalf pursues or engages in collection procedures to collect from Contractor any Company Paid Commissions, Contractor agrees to and shall be responsible to pay any and all expenses of collection of any such indebtedness, including but not limited to, the fees of collection agents, attorneys, or other costs of collection, including court costs. In the event Contractor has a Downline Hierarchy, Contractor shall be responsible to the Company and its Affiliates for any Unearned Commissions associated with any and all insurance agents in the Contractor's Downline Hierarchy as if such Unearned Commissions had been earned by Contractor, and all such Unearned Commissions shall be considered to be a loan from the Company Carrier and the Company to the Contractor and subject to the provisions of this Agreement.

4. Term and Termination.

a. **Term.** The term of this Agreement shall begin on the Effective Date and continue until either Party terminates this Agreement pursuant to the terms hereof.

b. **Termination.** Either Party may terminate this Agreement at any time, for any reason or no reason, by providing written notice thereof to the other Party. Upon termination, Contractor shall be entitled to receive Commissions and other compensation earned as of the effective date of termination. A Commission will be deemed "earned" when it is due and payable (as determined by the Company) by applicable Company Carriers and shall in all events be offset by any amounts due to the Company pursuant to the terms of this Agreement. All Commissions earned by Contractor as of the date of termination shall be distributed in accordance with Section 3. All provisions of this Agreement other than the Contractor's obligation to provide the Contractor Services and the Company's obligations described in Section 2 shall survive the termination of this Agreement.

5. Confidential Information.

Each Party has and will develop, compile, and own certain proprietary techniques and confidential information that have substantial value in its business (**"Confidential Information"**). Confidential Information includes all information related to a Party that has or could have commercial value or other utility in the business in which the Party is engaged. Confidential Information also includes all information of which the unauthorized disclosure could be detrimental to the interests of the Party to whom the information belongs. By example and without limitation, Confidential Information includes this Agreement all exhibits, schedules and other attachments to this Agreement; all information concerning each Party's business and its customers, independent contractor insurance agents, including but not limited to customer and independent contractor identities, characteristics, preferences, and any personally identifiable information related thereto (including names, addresses, phone numbers, account numbers, and social security numbers); any information provided to a Party by the other Party, including but not limited to electronic information, documents, software, and trade secrets; all manuals, forms, records, and agreements, pricing and product information, computer data information, business plans, strategies, forecasts, budgets, projections, historical sales information, advertising and marketing materials, and financial information; and the Party's commission or compensation levels. Each Party agrees that at all times during and after the term of this Agreement, it will hold in trust, keep confidential, and not disclose to any third party or make any use of the Confidential Information of the other Party except in the course of performing its obligations under this Agreement. Each Party acknowledges that it is aware that the unauthorized disclosure of Confidential Information of the other Party may be highly prejudicial to its interests, an invasion of privacy, and an improper disclosure of trade secrets and financial information and may be in violation of state or federal law. The term "Confidential Information" excludes any portion of such information that a Party can establish by clear and convincing evidence to have: (i) been publicly known without breach of this Agreement; (ii) been known by the Party without any obligation of confidentiality prior to disclosure of such Confidential Information; (iii) been received in good faith by the Party from a third party source having the right to disclose such information; or (iv) been independently acquired or developed without violating any of the Party's obligations under this Agreement. If a Party is required by a court or governmental authority having proper legal jurisdiction to disclose any Confidential Information, that Party shall promptly provide to the other Party hereto notice of such request, if permitted by law, so that the other Party may seek an appropriate protective order.

6. Non-Solicitation.

a. **Prohibition.** Each Party agrees that, during the period beginning on the Effective Date and ending two (2) years following any termination of this Agreement (the **"Restricted Period"**), subject to subsection 6.b. below, it and its Affiliates shall not, either for its or its Affiliates' own benefit or purposes or for the benefit or purposes of any other individual or entity:

i. directly and intentionally solicit any insurance agent (a **"Contracted Agent"**) employed or engaged by the other Party hereto or one of its Affiliates (the **"Contracted Agency"**) to (A) leave the employ of or engagement with the Contracted Agency or cease providing services to or on behalf of the Contracted Agency, or (B) reduce his or her working hours or otherwise alter his or her employment or engagement with the Contracted Agency to the detriment of the Contracted Agency; or

ii. directly and intentionally solicit for employment or any other type of work, in each case relating to the sale of insurance products, any Contracted Agent (whether or not for compensation) as an officer, employee, consultant, agent, adviser or independent contractor. Notwithstanding the foregoing, general solicitations of the public on websites, trade journals or magazines or newspapers of general circulation, social media posts, social events or recruiting events, which are not targeted at customers, vendors, employees, independent contractors, or other service providers of the Contracted Agency, shall not in and of themselves constitute violations of this Section 6 of this Agreement. In the event a Contracted Agent for one of the Parties approaches the other Party, both Parties agree to refer said Contracted Agent to their Contracted Agency and cease all other insurance and other work-related communications.

b. **Exclusion of Contractor's Downline Hierarchy.** Notwithstanding the foregoing, in the event of a termination of this Agreement, the provisions of subsection 6.a. above shall not apply with regard to any insurance agents that were, immediately before such termination, in the Downline Hierarchy of the Contractor.

c. **Releases.** Company will not release any Agents to any IMO that does not reciprocally release Agents to Company.

7. Non-Disparagement.

Each Party agrees that it and its Affiliates shall not (nor shall it or its Affiliates cause or cooperate with others to) at any time criticize, condemn, ridicule disparage, or otherwise make unfavorable statements about or comparisons to the other Party or anyone affiliated with the other Party or any of the other Party's products, services, policies, directors, officers, shareholders, employees or independent contractors with or through any written or oral statement or image (including but not limited to, any statements made via websites, applications, blogs, postings to the internet, emails, text messages, social media, or any electronic messaging programs or features, and whether or not they are made anonymously or through the use of a pseudonym).

8. Affiliates.

For purposes of this Agreement, the term "Affiliate" means any individual or entity that directly, or indirectly, through one or more intermediaries, controls or is controlled by or is under common control with the Party specified; without limiting the generality of the foregoing, all insurance agents in the Contractor's Downline Hierarchy or who are otherwise authorized to work for Contractor are the Contractor's Affiliates. For purposes hereof, the terms control and controlled mean the power to direct the management and policies of a party, directly or indirectly, whether through ownership, contract or otherwise.

9. Representations and Warranties.

Each of the Parties represents and warrants to the other Party, as of the date hereof and at all times during the terms of this Agreement, as follows:

a. **Organization; Authority; Enforceability.** If it is an entity, (i) it is a limited liability company or corporation duly formed, validly existing, and in good standing under the laws of its state of formation, (ii) it has the requisite organizational power and authority, and has taken all actions necessary to execute and deliver this Agreement, to consummate the transactions contemplated hereby, and to perform its obligations hereunder, and (iii) this Agreement has been duly authorized and has been duly executed and delivered by it and constitutes the legal, valid and binding obligation of it, enforceable against it.

b. **No Conflicts.** The execution and the delivery by it of this Agreement and the performance by it of its obligations hereunder and its consummation of the transactions contemplated hereby do not and will not (i) breach or violate (A) any law, order or regulation to which it or its assets and properties is subject or (B) any provision of its organizational documents; (ii) breach or conflict with any agreement, order or license to which it is a party or by which it is bound or to which any of its assets or properties is subject; or (iii) require the approval, consent, authorization or act of, or the making by it of any filing with, any third party. Contractor affirms Contractor has no other agreements, relationships or commitments to any other person or entity that conflict with Contractor's obligations to Company.

c. **Licenses.** It has all licenses necessary to perform the services contemplated by this Agreement and its obligations set forth herein.

d. **No Broker.** Other than customary compensation that may be paid by the Company or its Affiliates to licensed insurance agents associated with the Company or its Affiliates, it has no liability to pay any compensation to any broker, finder, or agent with respect to this Agreement or any the transactions contemplated hereby for which any the other Party or any Affiliate of the other Party could become liable.

e. **No Litigation.** There is no action pending or, to the knowledge of it, threatened against it or any of its Affiliates relating to or affecting this Agreement or any the transactions contemplated hereby.

f. **Consents, Approvals and Compliance.** There is no requirement applicable to it to make any filing with, or to obtain any permit, authorization, consent, or approval of, any individual or entity as a condition to the lawful performance of its obligations hereunder.

g. **Financial Ability.** It will have (when required under this Agreement) immediate access to all funds necessary to pay any payments hereunder and any related fees and expenses and will have (when required under this Agreement) the financial capacity to perform all of its other obligations under this Agreement.

h. **Background Investigations.** It has conducted background investigations on all employees, contractors and subcontractors assigned to perform work under this Agreement, provided that with respect to licensed insurance producers, the Parties may rely upon background checks performed for such licensed insurance producers by insurance carriers and/or in connection with the licensing process under state insurance laws. The Company shall have the right to reject any individual assigned to perform work under this Agreement, if, in its reasonable discretion, it determines that (i) the results of the background investigation make the individual unacceptable or (ii) no background Investigation has been conducted.

10. Ownership of Names, Service Marks, and Materials.

a. **Ownership and Return of Confidential Information and Company Property.** All Confidential Information and any materials (including, without limitation, documents, drawings, papers, diskettes, tapes, models, apparatus, sketches, designs, websites, internet URLs, email addresses and lists) furnished to Contractor by the Company or its Affiliates or any of their respective representatives, whether delivered to Contractor by the Company or its Affiliates or their respective representatives or acquired by Contractor in the performance of Contractor Services under this Agreement and whether or not they contain or disclose Confidential Information (collectively, the **"Company Property"**), are the sole and exclusive property of the Company or the Company's suppliers or customers. Within five (5) days after any request by the Company, Contractor shall destroy or deliver to the Company, at the Company's option, (i) all Company Property, and (ii) all materials in Contractor's possession or control that contain or disclose any Confidential Information of the Company or any of its suppliers or customers. Contractor will provide the Company a written certification of the Contractor's compliance with its obligations under this Section 10.a. if requested by the Company.

b. **Ownership and Return of Confidential Information and Contractor Property.** All Confidential Information and any materials (including, without limitation, documents, drawings, papers, diskettes, tapes, models, apparatus, sketches, designs, websites, internet URLs, email addresses and lists) furnished to the Company by Contractor or its Affiliates or any of their respective representatives, whether delivered to the Company by Contractor or its Affiliates or their respective representatives or acquired the Company in the performance of Company's obligations under this Agreement and whether or not they contain or disclose Confidential Information (collectively, the **"Contractor Property"**), are the sole and exclusive property of Contractor or the Contractor's suppliers or customers. Within five (5) days after any request by Contractor, the Company shall destroy or deliver to Contractor, at the Contractor's option, (i) all Contractor Property, and (ii) all materials in the Company's possession or control that contain or disclose any Confidential Information of Contractor or any of its suppliers or customers. The Company will provide Contractor a written certification of the Company's compliance with its obligations under this Section 10.a. if requested Contractor.

c. **No Ownership or Registration of Company Name or Marks.** Contractor agrees and understands that except as may be otherwise explicitly set forth herein, Contractor has no ownership in, or rights to, any of the Company's or its Affiliate's names or marks. Marks for purposes of this Agreement shall include logos, artwork, designs, slogans or any other trademarks or service marks created for, or used by, the Company or its Affiliates. Contractor agrees and understands that Contractor shall not register any Company or its Affiliates' name or mark, nor any business name that includes any Company or its Affiliates' name or mark, with any federal, state, city, or other governmental authority for any reason. Contractor may not represent that Contractor or Contractor's business is in any way owned by, or a subsidiary of, the Company or its Affiliates.

d. **No Ownership or Registration of Contractor Name or Marks.** The Company agrees and understands that except as may be otherwise explicitly set forth herein, the Company has no ownership in, or rights to, any of Contractor or its Affiliate's names or marks. Marks for purposes of this Agreement shall include logos, artwork, designs, slogans or any other trademarks or service marks created for, or used by, Contractor or its Affiliates. the Company agrees and understands that the Company shall not register any Contractor or its Affiliates' name or mark, nor any business name that includes any Contractor or its Affiliates' name or mark, with any federal, state, city, or other governmental authority for any reason. The Company may not represent that the Company or the Company's business is in any way owned by, or a subsidiary of, Contractor or its Affiliates.

11. Indemnification.

a. **By Company.** The Company will indemnify and hold harmless Contractor, its Affiliates, and the respective directors, officers, and employees of Contractor and its Affiliates (collectively, the **"Contractor Indemnified Persons"**), and will reimburse the Contractor Indemnified Persons for any losses incurred by the Contractor Indemnified Persons, arising from or in connection with: (i) any breach of any representation or warranty of the Company contained in this Agreement; (ii) any breach of any covenant or agreement of the Company contained in this Agreement; (iii) any fraud, willful misconduct, or gross negligence by the Company, its Affiliates. agents or employees related to or arising from this Agreement; or (iv) any failure of the Company to comply with all applicable laws.

b. **By Contractor.** Contractor will indemnify and hold harmless the Company, its Affiliates and the respective directors, officers and employees of the Company and its Affiliates (collectively, the **"Company Indemnified Persons"**), and will reimburse the Company Indemnified Persons for any losses incurred by the Company Indemnified Persons, arising from or in connection with: (i) any breach of any representation or warranty of Contractor contained in this Agreement; (ii) any breach of any covenant or agreement of Contractor contained in this Agreement; (iii) any fraud, willful misconduct, or gross negligence by Contractor, its Affiliates. agents or employees related to or arising from this Agreement; or (iv) any failure of Contractor to comply with all applicable laws.

12. Remedies, Equitable Relief and Costs.

Each Party hereby acknowledges and agrees that a violation of Section 5 or 6 of this Agreement would cause irreparable and substantial damage and harm to the other Party and could constitute a failure of consideration, and that money damages alone would be inadequate to compensate the aggrieved Party and would not be an adequate remedy for such violation(s). Accordingly, each Party hereby agrees that, in the event of any material breach or threatened breach of one or more such sections of this Agreement, the aggrieved Party shall be entitled to obtain from any court of competent jurisdiction preliminary and permanent injunctive or other equitable relief to restrain any material breach or threatened breach or otherwise to specifically enforce the provisions of this Agreement, without the necessity of showing actual damages or furnishing a bond or other security, and in the case of a temporary restraining order, such relief may be granted ex parte and without the necessity of a full hearing on the evidence. Such remedy shall be cumulative and not exclusive and shall be in addition to any other remedy the aggrieved Party may have, including without limitation, any right to recover damages. Each Party hereby agrees that if the other Party obtains injunctive or other equitable relief, or any other remedy available at law, in order to prevent or restrain a material breach or threatened breach of this Agreement, the prevailing Party shall be entitled to reimbursement by the non-prevailing Party of all costs (including reasonable attorneys' fees) incurred by the prevailing Party in connection with any such action, suit or proceeding.

13. Waiver of Jury Trial.

THE PARTIES DESIRE TO AVOID THE TIME AND EXPENSE RELATING TO A JURY TRIAL OF ANY DISPUTE. ACCORDINGLY, THE PARTIES, FOR THEMSELVES AND THEIR SUCCESSORS ANO ASSIGNS, HEREBY WAIVE TRIAL BY JURY OF ANY SUCH DISPUTE. THE PARTIES ACKNOWLEDGE THAT THIS WAIVER IS KNOWINGLY, FREELY, ANO VOLUNTARILY GIVEN, IS DESIRED BY BOTH PARTIES AND IS IN THE BEST INTERESTS OF BOTH PARTIES.

14. Waiver of Collective Action.

CONTRACTOR AGREES THAT CONTRACTOR WILL PURSUE ANY CLAIM OR LAWSUIT ARISING FROM OR IN ANY WAY RELATING TO THE CONTRACTOR'S WORK FOR OR WITH THE COMPANY (OR ANY OF ITS AFFILIATES) AS AN INDIVIDUAL, AND WILL NOT LEAD, JOIN, OR SERVE AS A REPRESENTATIVE OR MEMBER OF A CLASS OR GROUP OF PERSONS BRINGING SUCH A CLAIM OR LAWSUIT.

15. Enforceability, Severability and Reformation.

The Parties intend for all provisions of this Agreement to be enforced to the fullest extent permitted by law. Accordingly, in the event any provision or portion of this Agreement is held to be illegal, invalid, or unenforceable, in whole or in part, for any reason, under present or future law, such provision shall be severable, and the remainder thereof shall not be invalidated or rendered unenforceable or otherwise adversely affected. Without limiting the generality of the foregoing, if a court should deem any provision of this Agreement to create a restriction that is unreasonable as to scope, duration or geographical area, the Parties agree that the offending provisions of this Agreement shall be deemed stricken and the remaining portions enforceable, and such court may modify and “blue pencil" such provision to ensure its reasonableness and validity.

16. Compliance with Laws.

Contractor acknowledges and agrees that Contractor shall at all times when the Contractor is engaging in the Contractor Services comply with all applicable state and federal laws and any and all administrative or other rules, laws or regulations applicable to the Contractor and/or the Contractor’s activities, including without limitation, the CAN-SPAM Act of 2003, all applicable state laws, rules and regulations governing email and/or telephone marketing and/or solicitation, the Telephone Consumer Protection Act of 1991, the Federal Trade Commission Act, the Federal Communications Act, the Federal Trade Commission’s Amended Telemarketing Safes Rule, 16 CFR 310 et seq., all laws governing the National Do-Not-Call Registry, all applicable laws arising under the various regulating bodies that regulate insurance and/or annuities throughout the United States, all laws and regulations concerning data privacy, and all rules and regulations promulgated under any of the foregoing laws). In the event Contractor generates or purchases leads for use in connection with providing the Contractor Services, Contractor represents and warrants to the Company that all such leads have been generated in compliance with all the foregoing laws.

17. Governing Laws; Consent to Jurisdiction.

This Agreement shall be governed by and construed in accordance with the laws of the State of Utah, without regard to any choice of law rules that may direct the application of the laws of another jurisdiction. All disputes, litigation, proceedings or other legal actions that arise from or in any way relate to this Agreement or the relationship between the Parties that arises from or relates to this Agreement (collectively, "Disputes") shall be instituted in the courts of the State of Utah. Each Party irrevocably submits to the exclusive jurisdiction of the courts of the State of Utah, and of the United States sitting in Utah, in connection with any such Dispute. Each Party irrevocably waives, to the fullest extent permitted by applicable law, any defense or objection it may now or hereafter have to the laying of venue under any proceeding under this Agreement brought in any such court has been brought in an inconvenient forum.

18. Miscellaneous.

a. **Binding Effect.** Except as herein otherwise provided, this Agreement shall inure to the benefit of and shall be binding upon the Parties, their personal representatives, successors, heirs, and assigns, including any third party who acquires the Company.

b. **Assignment.** Contractor agrees that the Company may assign all of its rights and/or obligations under this Agreement to any Affiliate of the Company or to any third party who acquires the Company, regardless of whether such acquisition takes the form of an acquisition of stock or other equity interests, an acquisition of all or substantially all of the Company's assets, a merger or any other combination of the Company with and/or into another entity, or otherwise. The Contractor may not assign this Agreement or any of Contractor's rights or obligations hereunder to any third party, whether by operation of law or otherwise, except with the prior written consent of the Company.

c. **Entire Agreement.** The terms of this Agreement are the final expression of the Parties agreement with respect to the subject matter hereof and may not be contradicted by evidence of any prior or contemporaneous agreement. This Agreement supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter. Contractor acknowledges that the Company has not made any other representations concerning the subject matter of this Agreement.

d. **No Reliance on Prior Representations or Claims.** Contractor acknowledges and agrees that with the exception of any written agreements between Contractor and the Company executed contemporaneously herewith, Contractor has not relied on any representations or claims by the Company or anyone else about any aspect of the Company's business, including, without limitation, Contractor's earning potential, the incomes earned by others affiliated with the Company, the Company Carriers, Contractor's potential for advancement, or the Company's commission, compensation or contract levels, in deciding to enter into this Agreement or in taking any other act in connection therewith at any time; Contractor agrees not to make any claim otherwise in any proceeding or document.

e. **Amendment.** The Parties may not amend, supplement, or modify this Agreement in whole or in part except by an instrument in writing signed by both parties.

18. Miscellaneous (continued).

f. **Effect of Waiver.** The waiver by a Party of any breach of any provision of this Agreement will not be construed to be a waiver by any such party of any succeeding breach of that provision or a waiver by such Party of any breach of any other provision.

g. **Construction.** The Parties and their respective legal counsel participated in the preparation of this Agreement; therefore, this Agreement shall be construed neither against nor in favor of any of the Parties, but rather in accordance with its fair meaning.

h. **No Third-Party Beneficiaries.** No person shall be deemed to possess any third-party beneficiary right pursuant to this Agreement, except as provided in the arbitration provisions hereof. It is the intent of the Parties that no direct benefit to any third party is intended or implied by the execution of this Agreement.

i. **Counterparts.** This Agreement may be executed in one or more counterparts, each of which will be deemed an original. The counterparts of this Agreement may be executed and delivered by facsimile or other electronic means by any of the Parties to any other party and the receiving party may rely on the receipt of such document so executed and delivered by facsimile or other electronic means as if the original had been received.

j. **Notice.** All notices given or made pursuant to this Agreement shall be in writing and deemed effectively given one (1) business day following it being sent by electronic mail. All communications to Contractor shall be emailed to Contractor's email address set forth on the signature page to this Agreement or to such email address as subsequently modified by Contractor's written notice given in accordance with this subsection. If no email address for Contractor appears on the signature page, notice may be provided to the last known email address of Contractor as reflected in the Company's or any Company Affiliate's records. All communications to the Company shall be emailed to **br@thepncl.com,** which email address may be subsequently modified by written notice given in accordance with this subsection.

k. **Review by Independent Legal Counsel and Construction.** Contractor represents, warrants, and declares that in making and executing this Agreement, Contractor has relied solely upon his own judgment and knowledge, and upon the advice and recommendations of his own independently selected legal counsel, concerning the nature, extent, duration, scope, and effect of this Agreement. Contractor further acknowledges that they have been given ample opportunity to read this Agreement and that they have done so and understand it completely, and that they have been given ample opportunity to have this Agreement reviewed, prior to signature, by their legal counsel and that they have done so or have knowingly and voluntarily waived the right and opportunity to do so. Accordingly, Contractor waives any laws regarding construction or interpretation of this Agreement and agrees that they will not demand that the language of this Agreement be construed or interpreted more in their favor than in favor of Company.

l. **Facsimile or Other Electronic Transmission.** This Agreement may be executed and delivered via facsimile, electronic mail (including PDF or any electronic signature complying with the U.S. federal ESIGN Act of 2000, e.g., www.docusign.com) or other transmission method and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes.

m. **Captions.** Captions and headings appearing herein are included solely for convenience of reference and are not intended to affect the interpretation of any provision of this Agreement.

n. **Joint and Several.** If more than one entity and/or individual is named on the signature page hereto under Contractor, all such entities and individuals shall be jointly and severally responsible for the obligations of Contractor.

EXECUTION

Signature Page

IN WITNESS WHEREOF, this Agreement has been signed by the Parties as of the Effective Date.

COMPANY

PNCL, LLC

Kam Gray

BY

Kam Gray

PRINT NAME

President of Sales

TITLE

CONTRACTOR

BY

PRINT NAME

EMAIL ADDRESS

Vector One®

DEBIT-CHECK AGENT / AGENCY AUTHORIZATION FORM

Vector One Operations, LLC dba Vector One (collectively with its affiliates, "Vector One") manages the secured web portal interactive computer service provided by Debit-Check.com, LLC ("Debit-Check"). This Debit-Check Agent/Agency Authorization Form is by and among the undersigned ("you", "me", "I" or "my"), Vector One, and the Company (as defined below) and is used by Debit-Check subscribers who desire to be granted authorization from you for the submission and/or receipt of your personal information to the Debit-Check service as necessary to conduct a commission related debit balance screening. The undersigned company and its affiliates and authorized third parties (collectively, the "Company") is a Debit-Check subscriber. Accordingly, as part of the contracting and appointment process or determination of eligibility for advancement of commissions, the Company may conduct a commission related debit balance screening via Debit-Check in order to determine your eligibility and may continue to conduct periodic commission related debit balance screenings as determined in the Company's sole discretion following the engagement of any employment, appointment, contract, tenure, or other relationship with the Company.

Access to Debit-Check Information: You can obtain your commission related debit balance information by contacting the Vector One Agent Hotline at (800) 860-6546.

AGENT / AGENCY'S STATEMENT — READ CAREFULLY

The Company is hereby authorized to obtain and conduct a commission related debit balance screening through Vector One's Debit-Check secured web portal to determine if another Debit-Check subscriber has posted that I have an outstanding commission related debit balance. I understand that the Company may consider the results of the commission related debit balance screening in order to determine my eligibility to be contracted and appointed or determine my eligibility for advancement of commissions as an insurance producer and may continue to conduct periodic commission related debit balance screenings as determined in the Company's sole discretion following the engagement of any employment, appointment, contract, tenure, or other relationship with the Company. I understand and acknowledge that the Company may obtain commission related debit balance information through Debit-Check as state law allows. I understand that my information, including my name and social security number ("My Information") may be used for the purpose of obtaining and conducting a commission related debit balance screening. I further understand that in the event of termination or expiration of my employment, appointment, contract, tenure, or other relationship with the Company, whether voluntary or involuntary, if a commission related debit balance is owed to the Company, the Company may post My Information to the Debit-Check service which may be accessed by Debit-Check subscribers until such time the debit balance is satisfied or otherwise removed.

BY SIGNING BELOW, I HEREBY (PLEASE INITIAL ALL STATEMENTS)

(A) ________ Authorize the Company to use My Information for purposes of conducting a commission related debit balance screening, and periodic commission related debit balance screenings as determined in the Company's sole discretion following the engagement of any employment, appointment, contract, tenure, or other relationship with the Company, utilizing Debit-Check.

(B) ________ Authorize the Company to consider the results of the commission related debit balance screening in order to determine my eligibility to be contracted and appointed or determine my eligibility for advancement of commissions as an insurance producer.

(C) ________ Authorize and direct Vector One to receive and process My Information as necessary to intentionally disclose and furnish the results of my commission related debit verification screening, whether directly or indirectly, to the Company.

(D) ________ Authorize the Company to submit My Information to the Debit-Check service in the event of termination or expiration of my engagement with the Company, whether voluntary or involuntary, to the extent a commission related debit balance is owed to the Company.

(E) ________ Authorize and direct Vector One to receive and process My Information and intentionally disclose to any Debit-Check subscriber who submits an inquiry utilizing My Information the results of my commission related debit balance screening, which will contain My Information, to the extent a debit balance is owed.

____
AGENT / AGENCY PRINTED NAME

____
SIGNATURE

____
DATE

FOR COMPANY USE ONLY

Agreed and Acknowledged by Company: PNCL
NAME OF COMPANY

Kam Gray
SIGNATURE

Kam Gray, President of Sales
NAME AND TITLE